

Court No. - 46

Case :- WRIT - C No. - 12137 of 2020

Petitioner :- Shiv Kumar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Singh Kushwaha, Sushil Kumar Kushwaha

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Deepak Verma, J.

At the request of learned counsel for the petitioner, put up this case as unlisted on **31st August, 2020** before appropriate Bench.

This order has been passed in the presence of Sri Mahboob Ahmad, learned counsel appearing on behalf of respondent no.2.

Order Date :- 25.8.2020

Nitin Verma

Court No. - 5

Case :- WRIT - C No. - 12137 of 2020

Petitioner :- Shiv Kumar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Singh Kushwaha, Sushil Kumar Kushwaha

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Put up on 9.9.2020 in the additional cause list.

Order Date :- 31.8.2020

sfa/

Court No. - 29

Case :- WRIT - C No. - 12137 of 2020

Petitioner :- Shiv Kumar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Singh Kushwaha, Sushil Kumar Kushwaha

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Munishwar Nath Bhandari, J.

Hon'ble Ajay Bhanot, J.

As prayed, list on 17.9.2020 in the Additional Cause List.

Order Date :- 9.9.2020

Shukla

Court No. - 47

Case :- WRIT - C No. - 12137 of 2020

Petitioner :- Shiv Kumar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Singh Kushwaha, Sushil Kumar Kushwaha

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Sri Mahboob Ahmad, learned counsel appearing on behalf of the respondent nos.1 and 2 - U.P. Power Corporation is directed to seek instructions within a week as to why there is discrepancy in the amount mentioned in the demand notice and the recovery citation.

Let the matter be placed in the additional cause list on 01.10.2020.

Order Date :- 28.9.2020

Lbm/-

Court No. - 47

Case :- WRIT - C No. - 12137 of 2020

Petitioner :- Shiv Kumar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Singh Kushwaha, Sushil Kumar Kushwaha

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

A request has been made on behalf of Mr. Mahboob Ahmad, Advocate to adjourn the case for the day.

Let the matter be placed as unlisted on 6th October, 2020 before the appropriate Bench.

Order Date :- 1.10.2020

Ishrat

Case :- WRIT - C No. - 12137 of 2020

Petitioner :- Shiv Kumar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Singh Kushwaha, Sushil Kumar Kushwaha

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard learned counsel for the petitioner and learned Standing Counsel representing the State.

By means of the instant writ petition, the petitioner has sought for the following relief:

"1. To issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 01.8.2019 (Annexure 2) issued by respondent No. 2/Executive Engineer, Electricity Distribution-II, Mughalsarai, U.P. Power Corporation Ltd. Chandauli and recovery citation dated 01.10.2019 (Annexure 3) issued by the Tehsildar, Mughalsarai, district Chandauli.

2. To issue a writ, order or direction in the nature of mandamus directing respondent No. 2/Executive Engineer, Electricity Distribution-II, Mughalsarai, U.P. Power Corporation Limited, Chandauli to provide the correct electricity bill to the petitioner on the basis of new meter installed in accordance with the provision of clause 5.6 and 6.5 of the Electricity Supply Code, 2005 so that the applicant may be able to pay the electricity dues against him."

Shri Mahboob Ahmad, learned counsel appearing on behalf of the Power Corporation submits that in pursuance of the representation of the petitioner dated 13.1.2020 (Annexure-9) to the writ petition, the grievance of the petitioner was considered by respondent No. 2 and an order has been passed on 30.9.2020.

A copy of the said order has been supplied to the learned counsel for the petitioner in Court and also to the Court, which is taken on record.

In view of the decision taken by respondent No. 2, the petitioner, if so advised, may approach the competent authority under clause 7.10 of the Electricity Supply Code, 2005.

With the aforesaid observations, the writ petition is dismissed.

Order Date :- 6.10.2020

Ishrat